

HOUSE BILL 167

By Mitchell

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 13, relative to the offense of reckless
endangerment.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as "MaKayla's Law."

SECTION 2. Tennessee Code Annotated, Section 39-13-103, is amended by adding the following new subdivision (b)(5) and redesignating the existing subdivision (b)(5) accordingly:

(5) Reckless endangerment committed by a person when the person fails to lock, secure, or otherwise store or make unavailable a firearm and ammunition for the firearm is:

(A) A Class E felony if a child younger than thirteen (13) years of age obtains possession of the firearm, discharges the firearm, and the discharge results in bodily injury or serious bodily injury to the child or to another; or

(B) A Class C felony if a child younger than thirteen (13) years of age obtains possession of the firearm, discharges the firearm, and the discharge results in the death of the child or another.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.